

M/s Goyal Product Pvt. Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 June 2020 · WRIT - C No. 10376 of 2020 · **Mandamus issued to grant temporary connection under Clause 4.10(e) within one week.**

HEADNOTE

A Chief Judicial Magistrate's order on a Section 156(3) Cr.P.C. application that only calls for a preliminary enquiry report from the Superintending Engineer does not justify refusal of a temporary electricity connection. Mandamus issued to Purvanchal Vidyut Vitran Nigam to provide connection in accordance with Clause 4.10(e) of the Electricity Supply Code, 2005, within one week, provided the consumer completes other necessary formalities.

FACTUAL SUMMARY

M/s Goyal Product Private Limited applied for a temporary electricity connection from a mixed feeder under Clause 4.10 of the Electricity Supply Code, 2005 and deposited the charges. The Superintending Engineer of Purvanchal Vidyut Vitran Nigam refused the connection on a dispute raised by a private respondent. The licensee said it could not grant supply because the Chief Judicial Magistrate, Basti, had passed an order on that respondent's Section 156(3) Cr.P.C. application. Respondent officers were misdescribed as of Pashchimanchal Vidyut Vitran Nigam.

REUSABLE CONSTRUCTIONS

1. An order of the Chief Judicial Magistrate on a Section 156(3) Cr.P.C. application that merely calls for a preliminary enquiry report from the Superintending Engineer does not justify refusal of a temporary electricity connection under Clause 4.10(e) of the Electricity Supply Code, 2005. ¶ 7-8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.10(e)

temporary connection; 156(3) CrPC preliminary enquiry as alleged bar

HOLDING

A pending Section 156(3) Cr.P.C. order that only calls for a preliminary enquiry report from the Superintending Engineer is no justification to deny a temporary electricity connection. Mandamus issued commanding the licensee to provide connection in accordance with Clause 4.10(e) of the Electricity Supply Code, 2005, within one week, provided the petitioner fulfils the other necessary formalities. ¶ 5-8

PRINCIPLE TAGS

1563-preliminary-enquiry-not-bar-to-temporary-connection The licensee's refusal, founded only on a CJM order calling for a preliminary enquiry under Section 156(3) Cr.P.C., was held no justification to deny Clause 4.10(e) supply. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — PRIVATE RESPONDENT NO.4'S DISPUTE AND OBJECTIONS TO THE CONNECTION

Notice issued; listed for October 2020. Connection nonetheless directed against the licensee. ¶ 9-10

